

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Salk	Team: Team # 5	CCRB Case #: 200908258	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 05/15/2009 11:15 PM	Location of Incident: § 87(2)(b)	Precinct: 120	18 Mo. SOL 11/15/2010	EO SOL 11/15/2010	
Date/Time CV Reported Wed, 05/27/2009 5:50 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 05/27/2009 5:50 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Omar Birchwood	21286	945512	SI IRT
2. An officer			

Officer(s)	Allegation	Investigator Recommendation
A.POM Omar Birchwood	Abuse: On May 15, 2009, PO Omar Birchwood stopped § 87(2)(b)	§ 87(2)(b)
B.POM Omar Birchwood	Abuse: On May 15, 2009, PO Omar Birchwood frisked § 87(2)(b)	§ 87(2)(b)
C.POM Omar Birchwood	Abuse: On May 15, 2009, PO Omar Birchwood searched § 87(2)(b)	§ 87(2)(b)
D.POM Omar Birchwood	Abuse: On May 15, 2009, PO Omar Birchwood strip-searched § 87(2)(b)	§ 87(2)(b)
E.POM Omar Birchwood	Off. Language: On May 15, 2009, PO Omar Birchwood made remarks to § 87(2)(b) based upon race.	§ 87(2)(b)
F.POM Omar Birchwood	Discourtesy: On May 26, 2009, PO Omar Birchwood spoke obscenely and/or rudely to § 87(2)(b)	§ 87(2)(b)
G. An officer	Discourtesy: On May 26, 2009 an officer spoke obscenely and/or rudely to § 87(2)(b)	§ 87(2)(b)

Synopsis

On May 27, 2009, § 87(2)(b) filed a complaint with the CCRB via the agency's Call Processing System, and was contacted the following day for additional information. § 87(2)(b) complained that a particular officer, whom he identified by name as PO Omar Birchwood, had bothered him multiple times over the preceding months, but could only remember specific incidents that happened on two dates. On May 15, 2009, at around 11:30 PM, § 87(2)(b) and his wife § 87(2)(b) exited a store near 51 Hill Street in Staten Island. PO Birchwood allegedly approached and asked what they were doing, then frisked § 87(2)(b) and searched inside his jacket pockets (**Allegations A, B and C**). He allegedly pulled down § 87(2)(b)'s pants, exposing his underwear, while searching him (**Allegation D**). He allegedly said to § 87(2)(b) "What are you, a spic? I can't get rid of you spics" (**Allegation E**). No summonses were issued or arrests made.

On May 26, 2009, at an unspecified time, § 87(2)(b) were again walking in the vicinity of 51 Hill Street. PO Birchwood allegedly asked § 87(2)(b) for identification. § 87(2)(b) asked why and PO Birchwood allegedly told him, "Shut the fuck up, I'm the boss" (**Allegation F**). § 87(2)(b) was frisked, handcuffed and placed under arrest for urinating in public, and was charged with public lewdness and disorderly conduct, in addition to an unspecified local violation. § 87(2)(b) tried to speak to an unidentified supervisor, described as a white male, 5'6" tall and weighing 220 pounds, with short brown hair and in uniform, who allegedly told him, "Shut the fuck up and get out of here" (**Allegation G**).

§ 87(2)(b) provided PO Birchwood's name and described him accurately as a black male in his early-twenties, who was new to the NYPD. (PO Birchwood is a § 87(2)(b)-old black male with one year's tenure.) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) was contacted several times by phone and mail between May 29, 2009 and July 6, 2009. § 87(2)(b) scheduled an appointment for June 29, 2009, but failed to appear for the appointment. The undersigned spoke to § 87(2)(b) regarding this appointment on July 6, 2009, and § 87(2)(b) stated that he wished to withdraw his complaint § 87(2)(b)

§ 87(2)(b) confirmed that was not coerced into withdrawing his complaint by anyone from the NYPD or the CCRB and did so of his own free will. He agreed to sign and return a complaint withdrawal letter, which was mailed to his confirmed home address on July 6, 2009. § 87(2)(b)'s statements regarding his wish to withdraw were digitally recorded and have been reviewed by Team 5 Supervising Investigator Delene Bromirski.

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: